



Delhi Police

Handbook on Animal Protection Laws in Delhi

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Chapter I - Background

Animal Population in Delhi:

As per the 20th Livestock Census conducted by the *Department of Animal Husbandry and Dairying, Ministry of Fisheries, Animal Husbandry and Dairying* in 2019, Delhi has the following population of animals:

S.No.	Species	Population (Rural plus Urban)
1.	Cattle [in dairies]	3,09,562
2.	Cattle [straying on streets, in public places]	12,163
3.	Goats	30,470
4.	Poultry birds	43,831
5.	Pigs	84,927
6.	Horses and Ponies	2,694
7.	Mules and Donkeys	1,087
8.	Community Dogs [Street Dogs]	60,472
9.	Companion Dogs [Pet Dogs]	1,50,453

Note: The population for poultry birds, goats and pigs tabulated above merely reflect the population of these animals housed in animal agriculture units in Delhi. The figures above do not include the number of such farm animals held and slaughtered at livestock markets and meat shops across Delhi. Furthermore, population surveys have not been conducted for many other species of animals including but not limited to cats, monkeys, nilgai, wild boars and various birds. As a result, data for these animals is currently unavailable.

Chapter II - Protocol to Address Animal Cruelty Complaints

Inflicting unnecessary pain and suffering upon animals and subjecting them to cruelty is a criminal offense. Accordingly, all complaints of animal cruelty must be addressed in accordance with provisions of the following statutes –

1. *Bharatiya Nyaya Sanhita, 2023 [BNS, 2023]*
2. *Bharatiya Sakshya Adhinyam, 2023 [BSA, 2023]*
3. *Bharatiya Nagrik Suraksha Sanhita, 2023 [BNSS, 2023]*

Further, complaints pertaining to animal cruelty should be addressed in accordance with the *Prevention of Cruelty to Animals Act, 1960 [“PCA, 1960”]*, and *The Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017 [“Case Property Rules, 2017”]*.

The protocol to employed to address animal cruelty complaints is as below:

A. Upon Receipt of a Complaint:

Depending upon the nature of the offense, i.e., whether it is cognizable or non-cognizable; the first step is to either register an First Information Report [“FIR”] - for cognizable offenses, or file a Non-Cognizable Report [“NCR”] - for non-cognizable offenses, as described below.

A1) Cognizable Offenses:

I) If details pertaining to the commission of cognizable offences are brought to the knowledge of a police officer in charge of the jurisdictional police station, the officer should register an FIR under Section 173 of BNSS, 2023.

II) In the matter of *Lalita Kumari v. Government of Uttar Pradesh and Ors*, [2014 (2) SCC 1], the Hon’ble Supreme Court directed that registration of an FIR is mandatory if the information discloses the commission of a cognizable offense.

III) The concept of Zero FIR has been explicitly mentioned in the BNSS, 2023 and is provided under Section 173 of BNSS, 2023. This Section also provides for registration of an FIR electronically (e-FIR).

IV) Section 173 of BNSS, 2023 requires that a copy of the FIR registered be provided to the victim along with the informant.

V) Further, as per Section 173 of BNSS, 2023, for cognizable offences which are punishable with sentence of 3 years or more but less than 7 years, the officer in charge of the police station may with the prior permission of the Deputy Superintendent of Police, conduct preliminary enquiry to ascertain whether there exists a *prima facie* case for proceeding in the matter within a period of 14 days and with the investigation when there exists a *prima facie* case.

VI) As per Section 168 BNSS, 2023, it is the duty of every police officer to prevent the commission of cognizable offenses, to the best of their ability. This entails informing superior officers of the police, in accordance with Section 169 of BNSS, 2023. Section 170 of BNSS, 2023 also provides for arresting suspects if the situation requires.

A2) Non-Cognizable Offenses:

I) If details pertaining to the commission of non-cognizable offenses are brought to the knowledge of a police officer in charge of the jurisdictional police station, the concerned officer should ensure that the details of the offense are recorded as entries in a register, as per 174(1) of BNSS, 2023.

II) The concerned officer is also required to refer such information to the Magistrate. Section 174(1) of BNSS, 2023 also requires that the Daily Diary report of all such cases shall be forwarded on a fortnightly basis to the Magistrate.

A3) Examination of Complainant by Magistrate:

I) Section 223 read with Section 225 of BNSS, 2023 states that the Magistrate can take cognizance of an offence without the knowledge of the accused person.

II) Further, Section 223 of BNSS, 2023 has introduced another aspect which states that the Magistrate shall afford the accused an opportunity to be heard before the Court proceeds to take cognizance of an offence based on the complaint.

B. Initiation of an Investigation:

B1) Requirement of Orders from the Magistrate Prior to Investigation of Offenses:

I) Cognizable offenses can be investigated without orders from a Magistrate, as per Section 175(1) of BNSS, 2023.

II) Any Magistrate empowered under Section 210 of BNSS, 2023 may order an investigation of any cognizable offence as per Section 175 (3) of BNSS, 2023. Further, as per Section 175 (3) of BNSS, 2023 the Magistrate may order for an investigation on private complaints upon-

- Making an enquiry on a complaint made by the complainant
- Considering the submissions made by the police officer regarding the complaint made

III) Section 175 (4) of BNSS, 2023 further deals with complaints against public officials, where the Magistrate is empowered under Section 210 of BNSS, 2023, and can order investigation against public official subject to-

- Receiving a report containing facts and circumstances of the incident from the officer superior to the concerned public servant
- After consideration of the assertions made by the public servant, as to the situation that leads to the incident so alleged

IV) The police are required to obtain orders from a Magistrate prior to investigating non-cognizable offenses, as per Section 174(2) of BNSS, 2023.

V) Upon appropriate directions from the Magistrate in this regard, the investigation of non-cognizable offenses can proceed, following the same course as investigation for cognizable offenses. The same is detailed in Section 174(3) of BNSS, 2023.

B2) Copy of Report for Cognizable Offences to be Sent to the Magistrate

I) In case of cognizable offenses, the Magistrate must be kept apprised on the status of the investigation as detailed in Section 176(1) of BNSS, 2023, by providing a copy of the report pertaining to the offenses.

B3) Records to be Maintained by the Investigating Officer

I) The Investigating Officer [“IO”] assigned to the case is responsible for maintaining records of the investigation in a case diary, as required in Section 192 of BNSS, 2023.

II) The IO should ensure details pertaining to the statements recorded, findings arrived at through investigation and other key aspects are duly recorded.

B4) Powers of the Police While Conducting Investigations

The powers of police officers carrying out investigations draw from provisions of the BNSS, PCA, 1960 and the Case Property Rules, 2017, as detailed below -

I) As per Section 179 of BNSS, 2023 the police officer conducting the investigation has the power to require attendance of witnesses. The officer can through written communication, seek attendance of persons who appear to be acquainted with the facts and circumstances of the case. The persons the police officer may call upon for attendance, must belong to either the jurisdiction of the said officer's police station or the jurisdiction of the adjoining ones.

II) Section 180 of BNSS, 2023 also provides for the police officers carrying out the investigation to orally examine witnesses. The recording of statements pursuant to such examination is also provided for.

III) Officers are also empowered to carry out searches while investigating the commission of offenses, as per Section 185 of BNSS, 2023. Further, as per Section 185 of BNSS, 2023, the search conducted shall be recorded through audio-video electronic means, preferably by mobile phones. Section 185 of BNSS, 2023 should be read in consonance with Section 105 of BNSS, 2023.

IV) In terms of Sections 32 and 34 of PCA, 1960, police officers holding the rank of Sub-Inspector ["SI"] or above, are empowered to carry out search and seizure while investigating offenses under PCA, 1960.

V) Section 33 of PCA, 1960 provides for the circumstance when the Commissioner of Police/District Superintendent of Police has reason to believe offenses under this Act are being, are about to be, or have been committed in any place. In such a scenario, they may either themselves enter and search or authorize any police officer of the rank of SI or above to carry out such entry and search at the concerned premises.

B5) Seizure of Animals by the Police

I) Upon having reason to believe an offense under PCA, 1960 has been committed, any police officer holding a rank of a constable or above, is empowered under Section 34 of PCA, 1960 to seize an animal against whom the said offense is believed to have been committed. This Section provides similar seizing power to the constable for offenses that are being or are about to be committed.

II) The Constable is required to produce the seized animal for examination before the jurisdictional veterinary officer ["JVO"], as provided for in Section 34 of PCA, 1960.

III) In accordance with Rule 3 of the Case Property Rules, 2017, the police shall ensure the health inspection, identification, and marking of the animal through the JVO. Subsequently, the seized animal, who is treated as case property, is to be produced before the Magistrate.

B6) Collection of Evidence

I) Articles believed to have been used in offenses against animals and which may thus hold evidentiary value, are to be taken into custody of the police as per Section 106 of BNSS, 2023. The articles are to be presented before the Magistrate accompanied by photographic documentation, health and forensic reports. Such articles include weapons like knives/sticks, heavy chains, cages/receptacles and so forth.

II) As per Section 63 of BSA, 2023, videos, CCTV footage, photographs and other electronic records are considered as electronic evidence.

III) In the scenario that the electronic evidence cannot be produced in court, recourse may be taken to Section 63(4) of BSA, 2023. A certificate of attestation for the evidence, the recording device and the circumstances of such recording can be referred to. The said certificate must be duly signed by the person who operates the device as well.

IV) Rule 5(4) of the Case Property Rules, 2017 provides for any vehicle(s) used in commission of offenses under PCA, 1960 being seized and subsequently produced before the Magistrate.

C. Specific Protocols for Animals Seized by the Police:

Depending upon whether the animals against whom the offenses have been carried out are — alive, deceased or mortally wounded/diseased, the specific protocols may vary as below

C1) If the Animal is Alive

I) While conducting a search in a case of animal cruelty, if the police officer finds the animal is alive, the protocol is to seize the animal, as per Section 34 of PCA, 1960.

II) The next course of action as per Rule 3 of the Case Property Rules, 2017, is for the police officer to contact the JVO for identification tagging and health examination of the animal, as per the manner prescribed.

III) If it is found that the animal has sustained injuries/is suffering illness, they must be provided the necessary medical treatment as **per Section 35 of PCA, 1960.**

IV) Subsequently, the animal is to be produced before the Magistrate. The Magistrate has the power to decide upon the custody of the animal pending litigation as per Rule 3 of the Case Property Rules, 2017.

V) As per Rule 5 of the Case Property Rules, 2017, the cost of care and maintenance of the animals is to be borne by the accused. The accused is required to furnish bonds within 3 days, failing which the animal will be deemed to be forfeited.

VI) The seized animal is to be housed at the premises of the infirmary/pinjrapole/SPCA/Animal Welfare Organisation that has been granted custody by the Magistrate as per Rules 3-5 of the Case Property Rules, 2017.

C2) If the Animal is Deceased

I) If the police officer finds that the animal against whom offenses have been/are alleged to have been committed is deceased, the officer shall contact the JVO to carry out a Post-Mortem Examination of the animal.

II) The police officer must ensure prompt seizure of the body of the animal and handover the same to the JVO for expeditiously carrying out the Post-Mortem Examination.

III) The report arising from the Post-Mortem Examination which details the cause of death of the animal should accompany the investigation report as well as find reflection in the case diary.

C3) If the Animal is Mortally Wounded/Diseased

I) Upon coming across animals suffering severe injury/disease, a police officer above the rank of constable has the authority to contact the JVO and seek medical examination of the animal.

II) If the JVO is of the opinion that the animal is incurably injured/ill, and keeping the animal alive would prolong unnecessary pain and suffering - euthanasia may be carried out. All cases of euthanasia would require the JVO certifying the need for the same and obtaining consent from the Magistrate as per Section 13 of PCA, 1960.

D. Protocol for Cases where Injurious Substances are Found:

D1) The protocol to be followed upon finding injurious substances (including drugs) used in offenses committed/alleged to have been against animals is similar to that followed in general cases involving illegal drugs.

D2) The injurious substances are required to be seized and sent to the designated laboratory.

D3) If a Drug Inspector is present at the site and part of the search team, the seized substances must be sealed by the Drug Inspector and sent to the designated laboratory.

Relevant Case Laws:

1. ***Judgement of the Hon'ble Supreme Court dated 12.11.2013 in Lalita Kumari v.s Government of Uttar Pradesh and Ors [2014 (2) SCC 1]***: The Hon'ble Supreme Court directed that registration of an FIR is mandatory if the information discloses the commission of a cognizable offence and no preliminary enquiry is permissible in all cases where a cognizable offence is made out. The only scenario where preliminary inquiry is permissible is when there is a need to verify the nature of information received (in terms of the offence being cognizable or not). The Apex Court directed that the scope of the preliminary inquiry cannot be expanded to verify the veracity of the complaint, prior to registration of an FIR.
2. ***Order of the Hon'ble Supreme Court dated 05.02.2020 in Raghuramsharma & Anr. v.s C. Thulsi & Anr. [Crl. A. 230/2022]***: The Hon'ble Supreme Court of India in this case directed that the interim custody of the cattle should not be handed over to the accused. It was further directed that custody of the cattle/animals be retained by the appellants, subject to verification of their profile and the identity of the cattle. These directives illustrate the importance of ensuring animals who have been prima facie subject to cruelty are not returned to the accused.
3. ***Order of the Hon'ble Supreme Court dated 26.09.2022 in Meher Banu Begum v. State of Assam & Anr. [Misc. Application No. 1620/2022 in SLP(Crl) No. 9997/2021]***: The Apex Court of India affirmed that failure to pay the bond as required under Rule 5 of the *Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017* can result in the forfeiture of the animal. This underscores the principle that the Case Property Rules, 2017 do not allow the return of the animal's custody to the accused.

Chapter III - Broad Legal Framework for Offences Involving Animals

The legal frameworks provided by the Prevention of Cruelty to Animals Act, 1960 [“PCA, 1960”], and Bharatiya Nyaya Sanhita, 2023 [“BNS, 2023”] are instrumental in safeguarding animal welfare in India. PCA, 1960 is a welfare legislation, enacted to prevent and alleviate the unnecessary pain and suffering of animals. This Act defines various offences and stipulates corresponding penalties. Additionally, BNS, 2023 contains provisions pertaining to acts of mischief towards animals, entailing cruelty as well as acts that involve animals and endanger public health and safety.

1. Prevention of Cruelty to Animals Act, 1960 [“PCA, 1960”]

The following provisions under PCA, 1960 apply to offences against any or all animals, and must be applied in addition to any other specific legislation.

S.No.	Section as per PCA, 1960	Reproduction of Provision
Cognizable Offences		
1.	Section 11(1)(l)	<i>“(l) mutilates any animal or kills any animal (including stray dogs) by using the method of strychnine injections in the heart or in any other unnecessarily cruel manner;”</i>
2.	Section 11(1)(n)	<i>“(n) organises, keeps, uses or acts in the management of, any place for animal fighting or for the purpose of baiting any animal or permits or offers any place to be so used or receives money for the admission of any other person to any place kept or used for any such purposes;”</i>
3.	Section 11(1)(o)	<i>“(o) promotes or takes part in any shooting match or competition wherein animals are released from captivity for the purpose of such shooting;”</i>
4.	Section 12	<i>“12. Penalty for practising phooka or doom dev.—If any person performs upon any cow or other milch animal the operation called phooka or [doom dev or any other operation (including injection of any substance) to improve lactation which is injurious to the health of the animal] or permits such operation being performed upon any such animal in his possession or under his control, he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to two years, or with both, and the animal on which the operation was performed shall be forfeited to the Government.”</i>

Non-Cognizable Offences		
5.	Section 11(1)(a)	“11. Treating animals cruelly.— (1) If any person— (a) beats, kicks, over-rides, over-drives, over-loads, tortures or otherwise treats any animal so as to subject it to unnecessary pain or suffering or causes or, being the owner permits, any animal to be so treated;”
6.	Section 11(1)(b)	“(b) employs in any work or labour or for any purpose any animal which, by reason of its age or any disease, infirmity, wound, sore or other cause, is unfit to be so employed or, being the owner, permits any such unfit animal to be so employed;”
7.	Section 11(1)(c)	“(c) wilfully and unreasonably administers any injurious drug or injurious substance to any animal or wilfully and unreasonably causes or attempts to cause any such drug or substance to be taken by any animal;”
8.	Section 11(1)(d)	“(d) conveys or carries, whether in or upon any vehicle or not, any animal in such a manner or position as to subject it to unnecessary pain or suffering;”
9.	Section 11(1)(e)	“(e) keeps or confines any animal in any cage or other receptacle which does not measure sufficiently in height, length and breadth to permit the animal a reasonable opportunity for movement;”
10.	Section 11(1)(f)	“(f) keeps for an unreasonable time any animal chained or tethered upon an unreasonably short or unreasonably heavy chain or cord;”
11.	Section 11(1)(g)	“(g) being the owner, neglects to exercise or cause to be exercised reasonably any dog habitually chained up or kept in close confinement;”
12.	Section 11(1)(h)	“(h) being the owner of [any animal] fails to provide such animal with sufficient food, drink or shelter;”
13.	Section 11(1)(i)	“(i) without reasonable cause, abandons any animal in circumstances which render it likely that it will suffer pain by reason of starvation or thirst;”
14.	Section 11(1)(j)	“(j) wilfully permits any animal, of which he is the owner, to go at large in any street while the animal is affected with contagious or infectious disease or, without reasonable excuse permits any diseased or disabled animal, of which he is the owner, to die in any street;”
15.	Section 11(1)(k)	“(k) offers for sale or, without reasonable cause, has in his possession any animal which is suffering pain by reason of mutilation, starvation, thirst, overcrowding or other ill-treatment;”

16.	Section 11(1)(m)	“(m) solely with a view to providing entertainment— (i) confines or causes to be confined any animal (including tying of an animal as a bait in a tiger or other sanctuary) so as to make it an object of prey for any other animal ; or (ii) incites any animal to fight or bait any other animal ;”
Other Relevant Sections		
17.	Section 30	“ 30. Presumption as to guilt in certain cases. —If any person is charged with the offence of killing a goat, cow or its progeny contrary to the provisions of clause (l) of sub-section (1) of section 11, and it is proved that such person had in his possession, at the time the offence is alleged to have been committed, the skin of any such animal as is referred to in this section with any part of the skin of the head attached thereto , it shall be presumed until the contrary is proved that such animal was <i>killed in a cruel manner.</i> ”
18.	Section 38 (3)	“ 38. Power to make rules. — (3) If any person contravenes, or abets the contravention of, any rules made under this section, he shall be punishable with fine which may extend to one hundred rupees, or with imprisonment for a term which may extend to three months, or with both.”

2. Bharatiya Nyaya Sanhita, 2023 [“BNS, 2023”]

All the offences tabulated below are cognizable in nature -

S.No.	Section as per BNS, 2023	Reproduction of Provision
1.	Section 270 BNS, 2023	“ 270. Public Nuisance - A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right but a common nuisance is not excused on the ground that it causes some convenience or advantage”
2.	Section 271 BNS, 2023	“ 271. Negligent act likely to spread infection of disease dangerous to life. — Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both”

3.	Section 291 BNS, 2023	<i>“291. Negligent conduct with respect to animal.— 291. Whoever knowingly or negligently omits to take such measures with any animal in his possession as is sufficient to guard against any probable danger to human life, or any probable danger of grievous hurt from such animal, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both”</i>
4.	Section 325 BNS, 2023	<i>“325. Mischief by killing or maiming animal. - Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both”</i>

Chapter IV - State Specific Legislation - Provisions pertaining to Animals under Delhi Police Act, 1978

The Delhi Police Act, 1978 [“DPA, 1978”] provides the framework for the organization and operation of the police in the Union Territory of Delhi. Within this legislation, there are provisions pertaining to public health and safety as well as animal cruelty. Under Chapter IX of this Act, officers of the Delhi Police have been granted special powers to address cases of animal cruelty.

S.No.	Section as per DPA, 1978	Reproduction of Provision
1.	Section 98 [Cognizable Offence]	“98. Penalty for failure to keep in confinement cattle, etc.—(1) <i>Whoever allows any cattle which are his property or in his charge to stray in any street or to trespass upon any public or private property shall on conviction be punished—</i> <i>a) for the first offence, with imprisonment for a term which may extend to one month, or with fine which may extend to three hundred rupees, or with both; and</i> <i>(b) for the second or subsequent offence, with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.</i> <i>(2) The Metropolitan Magistrate trying an offence under sub-section (1) may order—</i> <i>(a) that the accused shall pay such compensation not exceeding two hundred and fifty rupees as such Magistrate considers reasonable to any person for any damage proved to have been caused to his property or the produce of his land by the cattle under the control of the accused trespassing on his land; and</i> <i>(b) that the cattle in respect of which the offence has been committed shall be forfeited to the Government.</i> <i>(3) Any compensation awarded under sub-section (2) may be recovered as if it were a fine imposed under this section.</i> <i>(4) It shall be the duty of every police officer and it shall be lawful for any other person to seize and take to any cattle pound for confinement therein any cattle found straying in any street or trespassing upon any private or public property.</i> <i>(5) Any fine imposed under this section may, without prejudice to any other means of recovery provided by law, be recovered by sale of all or any of the cattle in respect of which the offence was committed,</i>

		whether they are the property of the person convicted of the offence or were only in his charge when the offence was committed.
		(6) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the offence punishable under this section shall be cognizable. ”
2.	Section 28 (j)	“28. Power to make regulations for regulating traffic and for preservation of order in public places, etc.— (j) prohibiting, except along certain specified streets and during specified hours and subject to such conditions as may be specified in that behalf, the exposure or movement in any street of persons or animals suffering from contagious or infectious diseases, the carcasses of animals or parts of such carcasses or corpses of persons deceased...”
3.	Section 28 (l)	“(l) setting apart places for slaughtering animals , the cleaning of carcasses or hides, the deposit of noxious or offensive matter and for obeying calls of nature...”
4.	Section 28 (m)	“(m) in cases of existing or apprehended epidemic or infectious disease of men or animals , the cleanliness and disinfection of premises by the occupier thereof and residents therein and the segregation and management of the persons or animals diseased or supposed to be diseased, as may have been directed or approved by the Administrator, with a view to prevent the disease or check the spread thereof...”
5.	Section 28 (r)	“(r) prohibiting, except in accordance with such regulations, the placing of building materials or other articles or the fastening or detention of any horse or other animals in any street or public place...”
6.	Section 73	“73. Powers with regard to offences under Act 59 of 1960. (1) When in respect of an animal an offence punishable under sub-section (1) of section 11 or section 12 of the Prevention of Cruelty to Animals Act, 1960 has been committed, or when there is a reasonable ground for suspecting that such offence has been committed, a police officer may— (a) take the animal to the Metropolitan Magistrate, or (b) if the accused person so requires, take the animal to a veterinary officer specified by general or special order by the Administrator in this behalf: Provided that the police officer may, instead of taking the animal to a veterinary officer, take the animal for detention in a dispensary, or in

		<i>any suitable place approved by the Administrator by general or special order and the animal shall thereupon be detained there until its production before a Metropolitan Magistrate, or</i> <i>(c) take the animal to an infirmary appointed under section 35 of the said Act for treatment and detention therein, pending direction of a Magistrate under sub-section (2) of that section, or</i> <i>(d) when the animal is in such physical condition that it cannot be taken to a veterinary officer or a Metropolitan Magistrate, draw up a report of the condition of the animal in the presence of two or more respectable persons describing such wound, sores, fractures, bruises, or other marks of injury as may be found on the body of the animal:</i> <i>Provided that the police officer may take the animal for detention in a dispensary or any suitable place approved by the Administrator by general or special order and the animal shall thereupon be detained there until its production before a Metropolitan Magistrate.</i> <i>(2) Where an animal is detained in a dispensary, infirmary or other place under sub-section (1), the animal shall be produced before a Metropolitan Magistrate with the least possible delay and in any case within a period not exceeding three days from the date on which it was so detained</i>
7.	Section 75	“75. Veterinary officer to examine the animal.—The veterinary officer before whom an animal is brought under section 73 shall with all convenient speed examine the same and draw up a report of such examination and a copy of the report of such examination shall be delivered free of charge to the accused person if he applies for it.”
8.	Section 76	“76. Animal to be dealt with under Act 59 of 1960.—When under section 73, a police officer takes an animal for detention in a dispensary or infirmary or other place before its production before a Metropolitan Magistrate or a Metropolitan Magistrate directs its further detention in an infirmary, sub- sections (3) to (7) (both inclusive) of section 35 of the Prevention of Cruelty to Animals Act, 1960 shall, as far as may be, apply in relation to the detention of animal (including the cost of transport, maintenance and treatment of the animal) in the dispensary, infirmary or other place”

9.	Section 77	“77. Power of police officer to unsaddle animal or to unload it.— When a police officer in good faith suspects that any animal being employed in any work or labour is, by reason of any sore, unfit to be so employed, he may require the person in charge of such animal to unsaddle or unload it for the purpose of ascertaining whether any sore exists and, if any person refuses to do so, such police officer may himself unsaddle or unload the animal or may cause the same to be unsaddled or unloaded.”
10.	Section 78	“78. Arrest without warrant in case of certain offences under Act 59 of 1960.— Any police officer may arrest, without a warrant from a Magistrate, any person committing in his presence any offence punishable under clauses (a) to (m) (both inclusive) of sub-section (1) of section 11 of the Prevention of Cruelty to Animals Act, 1960.”
11.	Section 83 (a)	“83. Causing any obstruction in a street.— No person shall cause obstruction in any street or public place— (a) by allowing any animal or vehicle, which has to be loaded or unloaded, or take up or set down passengers, to remain or stand in the street or the public place longer than may be necessary for such purpose”
12.	Section 83 (b)	“(b) by leaving any vehicle standing or fastening any cattle in the street or the public place”
13.	Section 83 (c)	“(c) by using any part of a street or public place as a halting place for vehicles or cattle”
14.	Section 92	“92. Obstructing or annoying passengers in the street.— No person shall wilfully push, press, hustle or obstruct any passenger in a street or public place or by violent movements, menacing gestures, wanton personal annoyance, screaming, shouting, wilfully frightening horses or cattle or otherwise, disturb the public peace or order.”
15.	Section 94	“94. Prohibition against flying kites, etc.— No person shall fly a kite or any other thing so as to cause danger, injury or alarm to persons, animals or property.”
16.	Section 99	“99. Punishment for cruelty to animals.— Whoever in any place cruelly beats, goads, overworks, ill-treats or tortures or causes, or procures to be cruelly beaten, goaded, overworked, ill-treated or tortured, any animal shall, on conviction, be punished with imprisonment which may extend to one month, or with fine which may extend to one hundred rupees, or with both.”

Chapter V - Provisions Pertaining to Animal Birth Control and Community Animals

In the face of human-dog conflict, several attempts at exterminating community dogs in India have been undertaken. These have yielded abysmal results - both in terms of their failure to control dog populations as well as in reducing rabies incidence or human-dog conflict. The Animal Birth Control Rules, 2023 [“ABC Rules, 2023”], provide for an ethical, humane and efficient solution to address the aforementioned issues. The ABC Rules, 2023 should be read in conjunction with Sections 11(1) and 38 of the Prevention of Cruelty to Animals Act, 1960 [“PCA,1960”] and the Bharatiya Nyaya Sanhita, 2023 [“BNS, 2023”].



S.No.	Rule as per ABC Rules, 2023	Reproduction of Provision
1.	Rule 16 (3), (4), (5), (6)	“16. Resolution of Complaints regarding dog bites or rabid dogs:- The local authority may establish an Animal Helpline. Either the Project In- Charge or the Animal Welfare Organisation shall be responsible for recording and resolving conflict cases that may be reported. (3) Such animals shall be humanely captured and kept for observation at the Animal Birth Control Center and upon the advice of the Veterinary Practitioner, a dog showing symptoms of any communicable disease shall be housed in the Isolation Kennel

		where food and water shall be provided to the dog twice every day. (4) Any suspected rabid dog would then be subjected to inspection by a panel of two persons and the like a veterinary surgeon appointed by the local authority and a representative from an Animal Welfare Organisation. (5) If the dog is found to have a high probability of having rabies, it shall be isolated till it dies a natural death. Death normally occurs within ten days of contracting rabies. (6) If the dog is found not to have rabies but some other disease or is furious in nature then it would be handed over to the Animal Welfare Organisation who shall take the necessary action to cure and release the dog after ten days of observation.”
2.	Rule 20 (1)	“20. Feeding of Community Animals:– (1) It shall be responsibility of the Resident Welfare Association or Apartment Owner Association or Local Body’s representative of that area to make necessary arrangement for feeding of community animals residing in the premises or that area involving the person residing in that area or premises as the case may be, who feeds those animals or intends to feed those animals and provides care to street animals as a compassionate gesture. The Resident Welfare Association or Apartment Owner Association or the Local Body’s representative shall ensure:- (i) to designate feed spots which are mutually agreed upon, keeping in mind the number of dog population and their respective territories and the feeding spots shall be far from children play areas, entry and exit points, staircase or in an area which is likely to be least frequented by children and senior citizen. (ii) to designate feeding time depending on the movement of children, senior citizens, sports which is likely to be least frequented by children and senior citizen. (iii) designated feeder shall ensure that there is no littering at the feeding location or violation of guidelines framed by the Resident Welfare Association or Apartment Owner Association or that areas. (iv) designated feeders are allowed to volunteer for the vaccination, catching and release of dogs to assist with the Animal Birth Control Program.”

3.	Rule 20 (2)	<i>“(2) Where there is any conflict between the Resident Welfare Association or Apartment Owner Association and the animal caregivers or other residents, an Animal Welfare committee comprising of the following members shall be formed:</i> <i>(i) Chief Veterinary Officer or his representative;</i> <i>(ii) Representative of the Jurisdictional Police;</i> <i>(iii) Representative of the District Society for Prevention of Cruelty to Animal or State Board;</i> <i>(iv) Representative of any Recognised Animal Welfare Organisation conducting Animal Birth Control;</i> <i>(v) Veterinary Officer deputed by the local authority;</i> <i>(vi) Complainant;</i> <i>(vii) Representative of the Resident Welfare Association or Apartment Owner Association or Local Body of that area</i> <i>The decision of the Committee constituted under sub-rule (2) of rule 20 shall be the final decision with regard to the fixing of the feeding point and the Committee may also nominate person from amongst the designated Colony Care Taker by the Board to feed those animals in that area.</i>
4.	Rule 11 (1)	<i>“11. Capturing or sterilisation or immunisation or release:-</i> <i>(1) Capturing of street dogs shall be conducted for the following reasons namely:-</i> <i>(a). General purpose: for which the local authority in consultation with the Monitoring Committees shall decide to control the excess population of street dogs through animal birth control program in a specific area or region.</i> <i>(b). Specific complaints: for which the local authority in consultation with the Monitoring Committee shall set up an Animal Complaint Cell at the Animal Birth Control Center to receive information or complaints about dog bites from street dogs suspected to be suffering from Rabies.”</i>
5.	Rule 11 (5)	<i>“(5) The capturing of the animals shall be done by using humane methods such as net catching or hand catching or any other manner that is less irksome to the animal and use of tongs or wires for catching dogs shall be strictly prohibited.”</i>

6.	Rule 11 (19)	“(19) The dogs shall be released at the same place or locality from where they were captured and the date, time and place of their release shall be recorded after their complete recovery and the representative of the local authority or of the animal welfare organisation shall accompany the team at the time of release and from time to time, the Board may provide a suitable application for geo-tagging the location of the dogs during capture and release.”
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S.No.	Section as per BNS, 2023	Reproduction of Provision
1.	Section 351 BNS, 2023	“351. (1) <i>Whoever threatens another by any means, with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.</i> (2) <i>Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both..</i> (3) <i>Whoever commits the offence of criminal intimidation by treating to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.</i> (4) <i>Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence under sub-section (1).”</i> *Note: Threatening or intimidating any individuals from keeping pets or feeding street dogs amounts to criminal intimidation.

Relevant Case Laws:

1. ***Order dated 18.11.2015 of the Hon'ble Supreme Court in Animal Welfare Board of India (AWBI) Vs. People for Elimination of Stray Troubles & Ors. [S.L.P.(C) 691/2009]***: Vide Order dated 18.11.2015, the Hon'ble Supreme Court directed all states, municipal corporations, municipal committees, district boards and local bodies to take guidance from the Prevention of Cruelty to Animals Act, 1950 and the Rules pertaining to animal birth control. While acknowledging the need to protect lives of humans, the Apex Court held that there should be no administrative lapse or subterfuge adopted to evade implementation of PCA, 1960 or the Rules framed thereunder. Further the Court held that there is no provision in law for indiscriminate killing of dogs.
2. ***Judgement dated 24.06.2021 of Hon'ble Delhi High Court in Dr. Maya D. Chablani Vs. Smt Radha Mittal & Ors. [CS(OS) 277/2020]***: The Hon'ble Delhi High Court directed vide Order dated 24.06.2021 that all enforcement authorities, including SHOs of the Delhi Police, are required to provide assistance and ensure that no hindrance is caused to the caregivers or feeders of community dogs. caregivers or feeders
3. ***Order dated 06.10.2023 of the Hon'ble Delhi High Court in Anubhav Khajura and Ors. Vs. Union of India [W.P. (C) 7933/2023]***: Vide Order dated 06.10.2023, the Hon'ble Delhi High Court directed that only Animal Welfare Organisations recognised by Animal Welfare Board of India (AWBI) can conduct ABC programs for community dogs.

Chapter VI - Provisions Pertaining to Breeding and Sale of Animals

Violations occurring in pet shops and by dog breeders are subject to regulations as outlined in *the Prevention of Cruelty to Animals (Dog Breeding and Marketing Rules), 2017* [“Dog Breeding and Marketing Rules, 2017”], and *the Prevention of Cruelty to Animals (Pet Shop Rules), 2018* [“Pet Shop Rules, 2018”]. In addition to these specific rules, **Section 11(1)** of the *Prevention of Cruelty to Animals Act, 1960*, so as to ensure that animals at the shops and breeding premises are not subject to unnecessary pain or suffering.

Additionally, the possession of any wild animal or wildlife articles, as provided under the schedules of the *Wildlife Protection Act, 1972*, will amount to hunting as per **Section 9** of the Act. The Act strictly prohibits hunting of wild animals, thereby safeguarding wildlife and ensuring their protection against illegal trade and exploitation.



Chapter VII - Provisions Pertaining to Dairies and Cattle Premises

Delhi has 9 designated dairy areas/colonies, namely, Ghazipur Dairy Colony, Masoodpur Dairy Colony, Madanpur Khadar Dairy Colony, Goyla Dairy Colony, Kakrola Dairy Colony, Jharoda Dairy Colony, Shahbad Dairy Colony, Nangli Dairy Colony. Operation of dairies outside of these designated areas is *illegal ab-initio*. At all dairies across Delhi, in both designated and non- designated areas, there is brazen violation of statutory provisions. This includes the following general provisions of the Prevention of Cruelty to Animals Act, 1960 [“PCA, 1960”]-

- A large number of cattle at dairies across Delhi suffer grave injuries and illness, and are still used in dairies despite them being clearly unfit for the same, in violation of **Section 11(1)(b) of PCA, 1960.**
- Overcrowding of cattle at dairies and tethering using short ropes/heavy chains is in violation of **Sections 11(1)(e) and 11(1)(f) of PCA, 1960.**
- Cattle are denied adequate feed, water and shelter in violation of **Section 11(1)(h) of PCA, 1960.**
- Cattle are abandoned temporarily (during the non-milking hours). Male calves and infirm/aged cattle are permanently abandoned as well. Such abandonment is in violation of **Section 11(1)(i) of PCA, 1960.**
- Skin of dead calves is often stuffed with hay and other substances and used as a prop in an attempt to deceive cattle to let down their milk, in violation of **Sections 11(1)(a) and 11(1)(l) of PCA, 1960.**
- Administration of spurious drugs such as Oxycontin to cattle, especially at the time of milking, in violation of **Sections 11(1)(c) and Section 12 of PCA, 1960.**

Provision	Reproduction of Provision
Section 12, PCA 1960	<i>“12. Penalty for practising phooka or doom dev. — If any person performs upon any cow or other milch animal the operation called phooka or ¹[doom dev or any other operation (including injection of any substance) to improve lactation which is injurious to the health of the animal] or permits such operation being performed upon any such animal in his possession or under his control, he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to two years, or with both, and the animal on which the operation was performed shall be forfeited to the Government.”</i>



In addition to the provisions of PCA, 1960, as detailed above, the following provisions of the *Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978* [“Cattle Premises Rules, 1978”] and the *Delhi Agricultural Cattle Preservation Act, 1994* [DACP] also apply.

S.No.	Provision	Reproduction of Provision
1.	Rule 3 of the Cattle Premises Rules, 1978	“3. Registration of premises — Every person owing or in charge of premises in which not less than five heads of cattle are kept for the purpose of profit, shall, in any case, where the premises are already in existence, within three months from the commencement of these rules and, in any case where, after the commencement of these rules any such premises, apply to the registering authority for the registration of such premises.”
2.	Rule 9 of the Cattle Premises Rules, 1978	“9. Display of section 12 of the act — If any premises milch cattle are kept, there shall be displayed by the owner of cattle prominently in or near the premises, a copy of section 12 of the Preventing of Cruelty to Animals Act, 1960 (59 of 1960) (as reproduced below) in a language commonly understood in the locality. “12. If any person performs upon any cow or other milch animal the operation called phooka or doom dev or permits such operation being performed upon any such animal in his possession or under his control, he shall be punishable with fine which may be extended to one thousand rupees, or with imprisonment for a term which the operation was performed shall be forfeited to the government”

3.	Section 2 (a) read with Schedule of DACP	Agricultural cattle include - cows of all ages, calves of cows of all ages, bulls and bullocks.
4.	Section 2 (f) of DACP	2(f) ‘Slaughter’ means killing by any method whatsoever and includes maiming or inflicting of physical injury which in, the ordinary course will cause death.
5.	Section 2 (g) of DACP	2(f) ‘Veterinary Officer’ means a person appointed as such or invested with the powers of a Veterinary Officer under Section 3 [of DACP].
6.	Section 4 of DACP	“4. Prohibition on slaughter of Agricultural Cattle — Notwithstanding anything contained in any other law for the time being force or in any usage or custom to the contrary, no person shall slaughter or cause to be slaughtered or offer or cause to be offered for slaughter any agricultural cattle.”
7.	Section 5 of DACP	“Prohibition on transport or export of agricultural cattle for slaughter — (1) No person shall transport or offer for transport or cause to be transported agricultural cattle from any place within Delhi to any place outside Delhi, for the purpose of its slaughter in contravention of the provisions of this Act or with the knowledge that it will be or is likely to be, so slaughtered. (2) No person shall export or cause to be exported any agricultural cattle for the purpose of slaughter either directly or through his agent or servant or any other person acting on his behalf in contravention of the provision of this Act or with the knowledge that it will be or is likely to be slaughtered. (3) Any person desiring to export any agricultural cattle shall apply for a permit to concerned Veterinary Officer stating the reasons for which they are to be exported and the number of agricultural cattle with age and sex and also the name of the State/Union Territory to which they are proposed to be exported and shall further file a declaration to the effect that the agricultural cattle for which the permit for export is required, shall not be slaughtered...”
8.	Section 7 of DACP	“7. Prohibition on sale, purchase, disposal in any other manner of agricultural cattle — No person shall purchase, sell or otherwise dispose of or offer to purchase, sell or otherwise dispose of any agricultural cattle for slaughter of knowing or having reason to believe that such agricultural cattle shall be slaughtered.”
9.	Section 8 of DACP	“8. Prohibition on possession of flesh of Agricultural Cattle. - Notwithstanding anything contained in any other law for the time being in force no person shall have in his possession flesh of any agricultural slaughtered in contravention of the provisions of this Act.”

10.	Section 9 of DACP	<i>“9. Prohibition on possession of flesh of Agricultural Cattle slaughtered outside Delhi. No person shall have in his possession flesh of any agricultural cattle slaughtered outside Delhi.”</i>
11.	Section 11(3) of DACP	<i>“...(3) Any Police Officer not below the rank of Sub-Inspector or any person authorized in this behalf by the Government of Delhi may, with a view to securing compliance of the provisions of section 5, 7, 8 or 9 for satisfying himself that the provisions of the said sections have been complied with may.</i> <i>(a) enter, stop and search or authorize any person to enter, stop and search any vehicle used or intended to be used for the export of agricultural cattle.</i> <i>(b) seize or authorize the seizure of agricultural cattle in respect of which he suspects that any provision of sections 5, 7, 8 or 9 has been, is being or is about to be contravened alongwith the vehicles in which such agricultural cattle are found and thereafter take or authorize the taking of all measures necessary for securing the production of agricultural cattle and vehicles so seized, in a court and for their safe custody pending production...”</i>

Relevant Case Laws:

1. **Order dated 04.09.2019 in Gauri Maulekhi vs. Department of Urban Development and Ors. [WP(C) 459 of 2018] before the Hon'ble Delhi High Court:** As per Order dated 04.09.2019 of the Hon'ble Delhi High Court's Order in WP(C) 459 of 2018 [*Gauri Maulekhi vs. Department of Urban Development and Ors.*], the Hon'ble Court directed that the Respondents continue to take action against the unlicensed dairies operating in Delhi. This included the Delhi Police launching prosecutions against those running unlicensed dairies/abandoning cattle leading to their straying, in terms of Section 289 of IPC, 1860 read with Section 98 of the Delhi Police Act, 1978.
2. **Order dated 31.05.2007 in Common Cause (Regd.) Vs Union of India and Ors. [WP(C) 3791 of 2000] before the Hon'ble Delhi High Court:** The Hon'ble Delhi High Court directed as per Order dated 31.05.2007 that Coordination Committees were to be established in each Police District of Delhi, so as to address the issues arising from straying of cattle. Each Committee was to have 2 members - the Deputy Commissioner, MCD of the area and the Deputy Commissioner of Police of the concerned district.
3. **Order dated 25.04.2023 in Sunayana Sibal & Anr. vs. Dr. Ravindra Sharma & Anr. and Sunayana Sibal vs. Shri Gyanesh Bharti [WP(C) 3791 of 2000] before the Hon'ble Delhi High Court:** Vide common Order dated 25.04.2023 in *Sunayana Sibal & Anr. vs. Dr. Ravindra Sharma & Anr.* [Cont.Cas(C) 434/2022] and *Sunayana Sibal vs. Shri Gyanesh Bharti* [Cont.Cas(C) 868/2022], the Hon'ble Court directed that upon receiving a complaint from any citizen pointing out to the existence of an illegal/unlicensed dairy, whether in the Central Zone or the South Zone of Delhi, the concerned Coordination Committee will take immediate steps within 48 hours for inspecting the site and impounding the cattle. The Coordination Committee comprises the jurisdictional Deputy Commissioner of Police and the Deputy Commissioner, MCD.
4. **Order dated 01.05.2024 in Sunayana Sibal & Ors. Vs Govt. of NCT of Delhi & Ors. [WP(C) 13236 of 2024] before the Hon'ble Delhi High Court:** Vide Order dated 01.05.2024 in *Sunayana Sibal & Ors. vs. Govt. of NCT of Delhi & Ors.* [WP (C) 13236/2022], the Hon'ble Court directed that action be taken against usage of spurious Oxytocin in the dairies of Delhi. The Intelligence Department of Delhi Police, alongside the Drugs Control Department, GNCTD was further directed to investigate all cases of spurious Oxytocin production, packaging and distribution and take action in accordance with Section 12 of PCA, 1960 as well as Section 18(a) of the Drugs and Cosmetics Act, 1940.

Chapter VIII - Provisions Pertaining to Slaughterhouses and Meat Shops

1. With Regard to Slaughterhouses:

As per the Prevention of Cruelty to Animals (Slaughter House) Rules, 2001 – a slaughter house is defined as an area “*wherein 10 or more than 10 animals are slaughtered per day and is duly licensed or recognised under a Central, State or Provincial Act or any rules or regulations made thereunder.*”

All slaughterhouses can only be established and operated in compliance with the following requirements -

- Section 11(1) of PCA, 1960 and the Prevention of Cruelty to Animals (Slaughter House) Rules, 2001 [“Slaughterhouse Rules”] read alongside Section 38 of the PCA, 1960;
- Provisions of The Food Safety and Standards Act, 2006 [“FSS Act, 2006”] and the Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011 [“FSS Regulations, 2011”]
- Provisions of The Bharatiya Nyaya Sanhita, 2023 [“BNS, 2023”]
- Provisions of the Delhi Municipal Corporation Act, 1957 [“DMCA, 1957”]
- Provisions of The Delhi Police Act, 1978 [“DPA, 1978”]

2. With Regard to Meat Shops:

Slaughter of animals at meat shops is not permissible in law. The meat shops in Delhi are required to be established and operated keeping in mind the following provisions -

- Section 11(1) of PCA, 1960
- Provisions of FSS Act, 2006 and FSS Regulations, 2011
- Provisions of BNS, 2023
- Provisions of DMCA, 1957
- Provisions of DPA, 1978



S.No.	Rules as per the Slaughterhouse Rules	Reproduction of Provision
1.	Rule 3 (1)	<i>“3. Animals not to be slaughtered except in recognised or licensed houses</i> <i>— (1) No person shall slaughter any animal within a municipal area except in a slaughter house recognised or licensed by the concerned authority empowered under the law for the time being in force to do so.”</i>
2.	Rule 3(2)	<i>“(2) No animal which -</i> <i>(i) is pregnant, or</i> <i>(ii) has an offspring less than three months old, or</i> <i>(iii) is under the age of three months or</i> <i>(iv) has not been certified by a veterinary doctor that it is in a fit condition to be slaughtered,</i> <i>shall be slaughtered”</i>
3.	Rule 6 (1)	<i>“6. Slaughter — (1) No animal shall be slaughtered in a slaughter house in sight of other animals”.</i>
4.	Rule 6 (4)	<i>“... (4) Every slaughter house as soon as possible shall provide a separate space for stunning of animals prior to slaughter, bleeding and dressing of the carcasses”.</i>

5.	Rule 8	“8. Engagement in slaughter house — (1) No owner or occupier of a slaughter house shall engage a person for slaughtering animals unless he possesses a valid license or authorisation issued by the municipal or other local authority. (2) No person who has not attained the age of 18 years shall be employed in any manner in a slaughter house. (3) No person who is suffering from any communicable or infectious disease shall be permitted to slaughter an animal.”
<u>Note - All violations of the Prevention of Cruelty to Animals (Slaughter House) Rules, 2001 require to be addressed in accordance with Section 38 of the PCA, 1960.</u>		

S.No.	Provisions as per BNS, 2023	Reproduction of Provision
1.	Section 270 BNS, 2023	“270. Public nuisance. A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right but a common nuisance is not excused on the ground that it causes some convenience or advantage. <u>Note: Slaughter carried out and meat shops operate in violation of existing statues, can lead to injury and annoyance to the public who are forced to confront the sight and smell of blood, offals, and carcasses of dead animals. Thereby, this can comprise a public nuisance.</u>
2.	Section 271 BNS, 2023	“271. Negligent act likely to spread infection of disease dangerous to life. Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both” <u>Note: Improper disposal of slaughter waste including blood, offals, feathers and entrails leading to noxious odours. This may also lead to a breeding ground being created for flies, mosquitoes and other insects.</u>

Relevant Case Laws:

1. ***Order dated 23.08.2012 of the Hon'ble Supreme Court in Laxmi Narain Modi vs. Union of India and Ors. [WP(C) 309 of 2003]***: Vide Order dated 23.08.2012 in *Laxmi Narain Modi vs. Union of India and Ors.*, the Hon'ble Supreme Court issued directions to all the State and UT Governments to constitute State Slaughterhouse Monitoring Committees ["State SMCs"]. In terms of the Apex's Court's directions, the Delhi State SMC has been constituted and includes a Representative from Delhi Police. The inter-departmental Committee is responsible for regulating the conditions at both licensed and non-licensed slaughterhouses.
2. ***Order dated 17.02.2017 of the Hon'ble Supreme Court in Common Cause, a Regd. Society vs. Union of India and Ors. vs. [WP(C) 330 of 2001]***: The Hon'ble Supreme Court directed vide Order dated 17.02.2017 that the authorities in each state, including the Police, must follow all statutory requirements with regard to slaughterhouses. A compendium of the relevant mandatory provisions of law was made and circulated to all State Governments for strict adherence.

Chapter IX - Working Animals Employed to Carry Weight/Passengers & for Ceremonial Purposes

A large number of working animals are used across Delhi - to carry heavy loads, pull tongas, for ceremonial purposes in weddings and so forth. These equines are frequently seen at market places/mandis, and plying public streets. Provisions laid out in the Prevention of Cruelty to Draught and Pack Animals Rules, 1965 [“Draught and Pack Animals Rules, 1965”], outline the statutory requirements with regard to working animals used to carry/pull material. These rules should be read in conjunction with Sections 11(1) of the Prevention of Cruelty to Animals Act [“PCA, 1960”].

In accordance with Regulation 20 of 'The Delhi Control of Vehicular and Other Traffic on Roads and Streets Regulations, 1980', enacted under section 28 of the *Delhi Police Act, 1978*, notifications concerning prohibition on plying of animal driven vehicles and other slow-moving vehicles have also been issued. These specifically entail restrictions/timings for plying of such vehicles in a Zone Wise Manner.



Photo:Anipixels.com

S.No.	Section as per the Draught and Pack Animals Rules, 1965	Reproduction of Provision
1.	Rule 3	“3.Maximum loads for draught animals- (1) No person shall cause any animal specified in column 1 of the table below to draw a vehicle of the kind described in the corresponding entry in column 2 thereof if it carries a load in excess of the weight specified in the corresponding entry in column 3 thereof. (2) Where the vehicle to be drawn is a four-wheeled vehicle, weight specified in column 3 of the said table shall, in each case, be read as being one and a quarter times and, if the four-wheeled vehicle is one fitted with pneumatic tyres, as being one and a half times, as much as the weight so specified. (3) Where the vehicle, whether two-wheeled or four-wheeled is to be drawn by two animals of either species referred to in each of the entries in column 1 of the said table, the weight specified in the corresponding entry in column 3 thereof shall be read as being twice, and, if the vehicle is one fitted with pneumatic tyres, as being two and a half times as much as the weight so specified. (4) Where the route by which a vehicle is to be drawn involves an ascent for not less than one kilometer and the gradient is more than three meters in a distance of thirty meters, the weight specified in column 3 of the said table shall, in each case, be read as being one-half of what is so specified...”

S. No.	1	2	3
1.	Small bullock or small buffalo	Two-wheeled vehicle	
		a) if fitted with ball bearing	1000 kilograms
		b) if fitted with pneumatic tyres	750 kilograms
		c) if not fitted with pneumatic tyres	500 kilograms
2.	Medium bullock or medium buffalo	Two-wheeled vehicle	
		a) if fitted with ball bearing	1400 kilograms

		b) if fitted with pneumatic tyres	1050 kilograms
		c) if not fitted with pneumatic tyres	900 kilograms
1.	Large bullock or large buffalo	Two-wheeled - vehicle	
		a) if fitted with ball bearing	1800 kilograms
		b) if fitted with pneumatic tyres	1350 kilograms
		c) if not fitted with pneumatic tyres	900 kilograms
4.	Horse or mule	Two- wheeled vehicle	
		a) if fitted with pneumatic tyres	750 kilograms
		b) if not fitted with pneumatic tyres	500 kilograms
5.	Pony	Two -Wheeled vehicle	
		a) if fitted with pneumatic tyres	600 kilograms
		b) if not fitted with pneumatic tyres	400 kilograms
6.	Camel	Two-Wheeled Vehicle	1000 kilograms

2.	Rule 4	“4. Maximum load for certain pack animals- <i>No person shall cause any animal specified in column 1 of the table below to carry any load in excess of the weight specified in the corresponding entry in column 2 thereof.”</i>
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S. No.	1	2
1.	Small bullock or buffalo	100 kilograms
2.	Medium bullock or buffalo	150 kilograms
3.	Large bullock or buffalo	175 kilograms
4.	Pony	70 kilograms
5.	Mule	200 kilograms
6.	Donkey	50 kilograms
7.	Camel	250 kilograms

3.	Rule 5	“5. Maximum number of passengers for animal drawn vehicles- No person in charge of any vehicle drawn by any animal referred to in column I of the table under sub-rule (1) or rule 3 shall allow more than four persons, excluding the driver and children below 6 years of age, to ride on the vehicle.”
4.	Rule 6	“6. General Conditions for use of draught and pack animals- No person shall use or cause to be used any animal for drawing any vehicle or carrying any load 1. for more than nine hours in a day in the aggregate. 2. for more than five hours continuously without a break for rest for the animal 3. in any area where the temperature exceeds 37°C (99°F) during the period between 12.00 noon and 3.00 p.m.
5.	Rule 7	“7. Animals to be disengaged after work- No person shall continue to keep or cause to be kept in harness any animal used for the purpose of drawing vehicles, after it is no longer needed for such purpose.”
6.	Rule 8	“8. Use of Spiked bits prohibited- No person shall, for the purpose of driving or riding an animal or causing it to draw any vehicle or for otherwise controlling it, use any spiked stick or bit, harness or yoke with spikes, knobs or - projections or any other sharp tackle or equipment which causes or is likely to cause bruises, swellings, abrasions or severe pain to the animal.”
7.	Rule 9	“9. Saddling of horses- No person shall cause a horse to be saddled in such a way that the harness rests directly on the animal's withers without there being sufficient clearance between the arch of the saddle and the withers.”
8.	Rule 11 (1), (2)	“11. Powers of police officers and. other authorised persons- 1. If any police officer above the rank of a constable or any other person authorised in this behalf by the State Government or by the Board by general or special order has reason to believe that an offence against rule 3 or 4, has been or is being committed in respect of any animal referred to therein, he may, in any case where a weigh bridge is available within a reasonable distance, require the owner or other person in charge of such animal to take the animal or the vehicle or both to the weigh bridge for the purpose of determining the weight. of the load which the animal has been or is drawing or carrying. 2. If the owner or other person in charge of the aforesaid animal refuses to comply with the demand of the police officer or other person as so authorised, it shall be lawful for such police officer or other person to take the animal or the vehicle or both to the weight bridge for the purpose aforesaid....”

Chapter X - Transport of Animals via Foot, Road, Rail and Air

Delhi is growing increasingly urban and given this large number of farm animals like poultry birds, pigs, goats and sheep are transported into Delhi from rural areas of Haryana, Uttar Pradesh and Rajasthan. Such transport is mainly through rail and road. Additionally, other animals such as cattle and equines are transported via foot, rail and road. The statutory provisions detailed in this Chapter cover aspects related to animal transportation, health checks, documentation, first aid provisions, and feeding arrangements. They also highlight restrictions on transporting specific animals (including wildlife) as well as regulations to be adhered to.

The provisions pertaining to transport of animals are as below -

- The Prevention of Cruelty to Animals (Transport of Animals on Foot) Rules, 2001 [“Transport of Animals on Foot Rules, 2001”]
- The Transport of Animals Rules, 1978
- The Motor Vehicles Act, 1988
- The Delhi Motor Vehicle Rule, 1993



S.No.	Rule as per the Transport of Animals on Foot) Rules, 2001	Reproduction of Provision
1.	Rule 4	“4. Condition of health of animals transported on foot- (1) Every animal to be transported on foot shall be healthy and in good condition for such transport. (2) A certificate of a veterinary doctor in respect of each animal to be transported to the effect that such animal is in a fit condition for such transportation and is not suffering from any infectious, contagious or parasitic diseases and that it has been vaccinated against any infectious, contagious or parasitic diseases shall accompany such animal. (3) The certificate under sub rule (1) shall be in the form as specified in the First Schedule”
2.	Rule 5	“5. Certain animals not to transport on foot - New born animals of which the navel has not completely healed, diseased, blind, emaciated, lame, fatigued, or having given birth during the preceding seventy two hours or likely to give birth during transport shall not be transported on foot.”
3.	Rule 8	“8. Certificate to be carried during transportation - In case the person transporting the animals on foot is not the owner of the animal then such person shall carry a certificate as specified in the Second Schedule during such transportation.”
5.	Rule 11	“11. Prohibition of the use of whip, etc during transportation of animals on foot - (1) No person shall use a whip or a stick in order to force the animal to walk or to hasten the pace of their walk nor such person shall apply chillies or any other substance to any part of the body of the animal for this purpose during their transportation on foot. (2) If any animal needs to be tied during transport on foot, it shall be tied by a rope covered with suitable cushioning such as cloth around its leg and such animal shall not be tied by its nose, all legs or any

		<i>other part of the body except by its neck.</i> <i>(3) If more than one animal is to be tied adjacent to one another by a single rope during their transport on foot, the space between any two of such animals shall be minimum two feet and animals so tied shall be of similar physical condition and strength and no more than two such animals shall be tied adjacent to each other by a single rope.”</i>
7.	Rule 12	“12.Certain Prohibition on transport of animals on foot <i>(1) No person shall transport on foot an animal before sunrise or after sunset.</i> <i>(2) No animal shall be transported on foot beyond the distance, time, rest interval and temperature specified for such animal in the Table below, namely :-</i> <i>(3) No animal shall be made to walk under conditions of heavy rain, thunderstorms or extremely dry or sultry conditions during its transport on foot.”</i>

Species (Animal)	Maximum distance covered/day/hour	Maximum no. of walking days of hours (Travelling)	Period of rest (Intervals)	Temperature range Max. Min.
Cattle (Cows)	30 km/day 4 km/hr	8 hours	At every 2 hours for drinking and at every 4 hrs for feeding	12 deg. C to 30 deg. C
Buffaloes	25 km/day 3km/hr	8 hours	At every 2 hours for drinking and at every 4 hrs for feeding	12 deg C to 30 deg C
Cows and Buffalo Calves	16 km/day 2.5 km/hour	6 hours	At every 1 ½ hrs drinking and at every 3 hrs. for feeding	15 deg C to 25 deg. C
Horses, Ponies, Mules, Donkeys	45 km/day 6km/hr	8 hours	At every 3 hrs for drinking and at every 6 hrs. for feeding	12 deg. C to 30 deg. C
Young ones (Foal)	25 km/day 4k km/hr	6 hours	At every 2 hrs. for drinking and at every 4 hrs. for feeding	15 deg C to 25 deg. C

Goats and Sheep	30 km/day 4 km/hr	8 hours	At every 2 hrs. for drinking and at every hrs. for feeding	12 deg C to 30 deg. C
Kids and Lambs	16 km/day 2.5 km/hr	6 hours	At every 1 ½ hrs. for drinking and at every 3 hrs. for feeding	15 deg C to 25 deg. C
Pigs	15 km/day 2km/hr	8 hours	At every 1 ½ hrs. for drinking and at every 3 hrs. for feeding	12 deg C to 25 deg. C
Piglets	10 km/day 1.5 km/hr	6 hours	At every 1 ½ hrs. for drinking and at every 3 hrs. for feeding	15 deg C to 25 deg.C

8.	Rule 14	<i>“14. Power of Police to require the owner to take animal to nearest Magistrate -</i> <i>(1) If any police officer above the rank of constable or any other person authorised in this behalf by the Central or state Government or by the Animal Welfare Board of India by the general or special order, has reason to believe that an offence has been or is being committed in respect of an animal in contravention of these rules, he may require the owner or other person in charges of such animal to take the animal to the nearest magistrate.</i> <i>(2) If the owner or the person in charge of the animals referred to in sub rule (1) refuses to comply with the demands of the police officer under that sub rule, it shall be lawful for such police officer or such other persons to take the animal to the nearest magistrate.”</i>
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S.No.	Chapter & Rule as per the Transport of Animals Rules, 1978	Note/Reproduction of Provision
1.	Chapter IX, Rule 96	“96. Issue of certificate before transportation - <i>(1) A valid certificate issued by an officer or any person or Animal Welfare Organisation duly recognised and authorised for this purpose by the Animal Welfare Board of India or the Central Government shall be procured by any person making transport of any animal before transportation of such animal verifying that all the relevant Central and State Acts, rules and orders pertaining to the said animals including the rules relating to transport of such animals have been duly complied with and that the animal is not being transported for any purpose contrary to the provision of any law.</i> <i>(2) In the absence of such certificate, the carrier shall refuse to accept the consignment for transport.”</i>
2.	Chapter IX, Rule 98	“98. General conditions of transport - <i>(1) Animals to be transported shall be healthy and in good condition and such animals shall be examined by a veterinary doctor for freedom from infectious diseases and their fitness to undertake the journey; provided that the nature and duration of the proposed journey shall be taken into account while deciding upon the degree of fitness.</i> <i>(2) An animal which is unfit for transport shall not be transported and the animals who are new born, diseased, blind emaciated, lame, fatigued or having given birth during the preceding seventy two hours or likely to give birth during transport shall not be transported.</i> <i>(3) Pregnant and very young animals shall not be mixed with other animals during transport.</i> <i>(4) Different classes of animals shall be kept separately during transport.</i> <i>(5) Diseased animals, whenever transported for treatment, shall not be mixed with other animals</i>

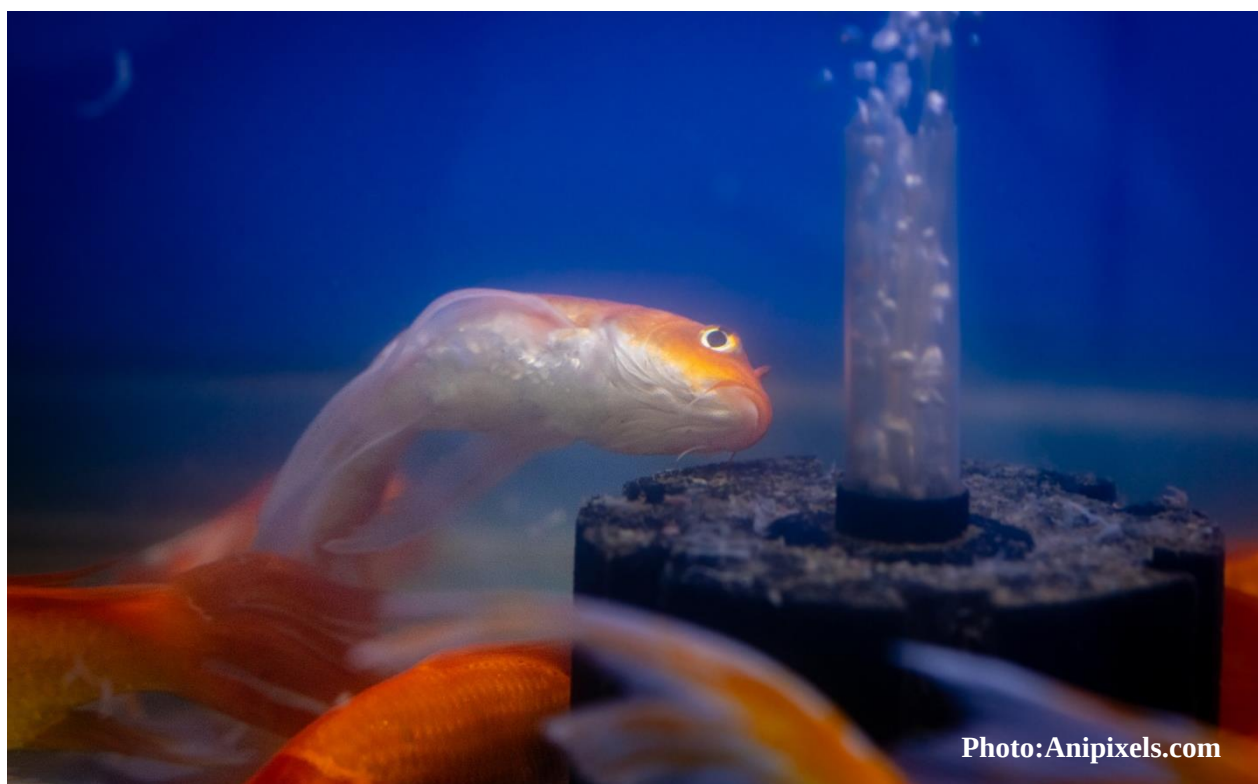
		(6) Troublesome animals shall be given tranquilisers before loading during transport. (7) Animals shall be transported in their on-farm social groups (established at least one week prior to journey).
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S.No.	Section as per the Motor Vehicles Act, 1988	Reproduction of Provision
1.	Section 132	“132. Duty of driver to stop in certain cases.— (1) The driver of a motor vehicle shall cause the vehicle to stop and remain stationary so long as 1 [may for such reasonable time as may be necessary, but not exceeding twenty-four hours]— 2 [(a) when required to do so by any police officer not below the rank of a Sub-Inspector in uniform, in the event of the vehicle being involved in the occurrence of an accident to a person, animal or vehicle or of damage to property, or] (b) when required to do so by any person in charge of an animal if such person apprehends that the animal is, or being alarmed by the vehicle will become, unmanageable, and he shall give his name and address and the name and address of the owner of the vehicle to any person affected by any such accident or damage who demands it provided such person also furnishes his name and address. (2) The driver of a motor vehicle shall, on demand by a person giving his own name and address and alleging that the driver has committed an offence punishable under section 184 give his name and address to that person. (3) In this section the expression “animal” means any horse, cattle, elephant, camel, ass, mule, sheep or goat.”

S.No.	Rule as per the Delhi Motor Vehicle Rules, 1993	Reproduction of Provision
1.	Rule 80	“80. Carriage of animals in goods vehicle. - (1) <i>No cattle/animal shall be carried in a goods vehicle unless the owner of the vehicle provides that;</i> (i) <i>the load body of the vehicle is constructed of strong wooden planks or of iron sheets with a minimum height of 1.5 meters measured from the floor of the vehicle on all sides and the back.</i> (ii) <i>the cattle/animals are properly secured by ropes tied to the sides of the vehicles,</i> (iii) <i>each cattle/animal is provided reasonable space.</i> (2) <i>The number of cattle that may be carried in a goods vehicle shall not exceed. -</i> (a) <i>in the case of goats, sheep, pigs, rams, cows, kids and the like,</i> (i) <i>40, when the wheel base of such vehicle is below 3.5. meters.</i> (ii) <i>50, when the wheel base is 3.5 meters or above.</i> (b) <i>in case of other cattle,</i> (i) <i>4 with calves/young ones or 5 without calves/young ones when the wheel base of a such vehicle is below 3.5 meter; and</i> (ii) <i>5 with calves/young ones or 6 calves/young ones when the wheel base is 3.5 meter or above.</i> <i>Explanation: “Cattle” for the purpose of this Rule include goat, sheep, pig, buffalo, lamb, ox, cow, deer, horse, pony, ass, mule, camel and their young ones.</i> (3) <i>No animal belonging to or intended for a circus menageries or zoo shall be carried in a goods vehicle unless the owner of the vehicle besides providing reasonable floor space for each animal also provides in case of wild or ferocious animal, a suitable cage, either separated from or integral with the load body of the vehicle used of sufficient strength to contain the animal securely at all times.</i> (4) <i>No cattle under sub-rule (2) or animal under sub-rule (3) shall be carried for more than 320 kilometers at a stretch.</i> (5) <i>No goods vehicle when carrying any goods under sub-rule (2) or animal under sub-rule (3) shall be driven at a speed in excess of twenty- four kilometer per hour.”</i>

Chapter XI - Animals Trained and/or Exhibited for Performance Purposes

A performing animal is one that is used *for the purpose of entertainment to which the public are admitted*, as per Rule 2 (h) of The Performing Animals (Registration) Rules, 2001 [“Performing Animals Rules”]. Common instances of performing animals in Delhi include monkeys used by *madaris*, aquariums where ornamental fishes are exhibited, dog and cat shows where these companion animals are made to perform tricks and displayed, and so forth.



S.No.	Section as per PCA, 1960	Reproduction of Provision
1.	Section 22	“22. Restriction on exhibition and training of performing animals.—No person shall exhibit or train— (i) any performing animal unless he is registered in accordance with the provisions of this Chapter; (ii) as a performing animal, any animal which the Central Government may, by notification in the Official Gazette, specify as an animal which shall not be exhibited or trained as a performing animal.” <u>Note: Bears, Monkeys, Tigers, Panthers, Lions & Bulls are prohibited to be used as exhibits or trained as performing animals as per Ministry Of Environment Forest and Climate Change Notification dated 07.01.2016</u>

2.	Section 25	“25. Power to enter premises.— (1) Any person authorised in writing by the prescribed authority referred to in section 23 and any police officer not below the rank of a sub-inspector may— (a) enter at all reasonable times and inspect any premises in which any performing animals are being trained or exhibited or kept for training or exhibition, and any such animals found therein; and (b) require any person who, he has reason to believe, is a trainer or exhibitor of performing animals to produce his certificate of registration. (2) No person or police officer referred to in sub-section (1) shall be entitled under this section to go on or behind the stage during a public performance of performing animals
20.	Section 26	“26. Offences.— If any person— (a) not being registered under this Chapter, exhibits or trains any performing animal; or (b) being registered under this Act, exhibits or trains any performing animal with respect to which, or in a manner with respect to which, he is not registered; or (c) exhibits or trains as a performing animal, any animal which is not to be used for the purpose by reason of a notification issued under clause (ii) of section 22; or (d) obstructs or wilfully delays any person or police officer referred to in section 25 in the exercise of powers under this Act as to entry and inspection; or (e) conceals any animal with a view to avoiding such inspection; or (f) being a person registered under this Act, on being duly required in pursuance of this Act to produce his certificate under this Act, fails without reasonable excuse so to do; or (g) applies to be registered under this Act when not entitled to be so registered; he shall be punishable on conviction with fine which may extend to five hundred rupees, or with imprisonment which may extend to three months, or with both.”

Chapter XII - Provisions Pertaining to Wildlife

The Wildlife Protection Act, 1972 [“WLPA, 1972”] provides an essential framework with regards to the conservation, protection, and management of wildlife. This Act authorizes police authorities to investigate offences, conduct searches, and make arrests, ensuring compliance with wildlife conservation laws.



S.No.	Section as per WLPA, 1972	Reproduction of Provision
1.	Section 9	“ [9. Prohibition of hunting.] —No person shall hunt any wild animal specified in [Schedules I and II] except as provided under section 11 and section 12.]”
2.	Section 32	“ 32. Ban on use of injurious substances. — No person shall use, in a sanctuary, chemicals, explosives or any other substances which may cause injury to, or endanger, any wild life in such sanctuary.”
3.	Section 38J	“ 38J. Prohibition of teasing, etc., in a zoo. — No person shall tease, molest, injure or feed any animal or cause disturbance to the animals by noise or otherwise, or litter the grounds in a zoo.]”

4.	Section 39	“39. Wild animals, etc., to be Government property.— (1) Every— (a) wild animal, other than vermin, which is hunted under section 11 or sub-section (1) of section 29 or sub-section (6) of section 35 or kept or 1 [bred in captivity or hunted] in contravention of any provision of this Act or any rule or order made thereunder or found dead, or killed or by mistake; and (b) animal article, trophy or uncured trophy or meat derived from any wild animal referred to in clause (a) in respect of which any offence against this Act or any rule or order made thereunder has been committed, [(c) ivory imported into India and an article made from such ivory in respect of which any offence against this Act or any rule or order made thereunder has been committed; (d) vehicle, vessel, weapon, trap or tool that has been used for committing an offence and has been seized under the provisions of this Act.] shall be the property of the State Government, and, where such animal is hunted in a sanctuary or National Park declared by the Central Government, such animal or any animal article, trophy, uncured trophy or meat 4 [derived from such animal or any vehicle, vessel, weapon, trap or tool used in such hunting] shall be the property of the Central Government. (2) Any person who obtains, by any means, the possession of Government property, shall, within forty-eight hours from obtaining such possession, make a report as to the obtaining of such possession to the, nearest police station or the authorised officer and shall, if so required, hand over such property to the officer-in-charge of such police station or such authorized officer, as the case may be...”
5.	Section 50	“50. Power of entry, search, arrest and detention.— (1) Notwithstanding anything contained in any other law for the time being in force, the Director or any other officer authorised by him in this behalf [or the Management Authority or any officer authorised by the Management Authority] or the Chief Wild Life Warden or the authorised officer or any forest officer or any police officer not below the rank of a sub- inspector [or any customs officer not below the rank of an inspector or any officer of the coast guard not below the rank of an Assistant Commandant], may, if he has reasonable grounds for believing that any person has committed an offence against this Act,— (a) require any such person to produce for inspection any captive animal, wild animal, animal article, meat, trophy or [trophy,

	<i>uncured trophy, specified plant or part or derivative thereof [or scheduled specimen]] in his control, custody or possession, or any licence, permit or other document granted to him or required to be kept by him under the provisions of this Act;</i> <i>(b) stop any vehicle or vessel in order to conduct search or inquiry or enter upon and search any premises, land, vehicle or vessel, in the occupation of such person, and open and search any baggage or other things in his possession;</i> <i>[(c) seize any captive animal, wild animal, animal article, meat, trophy or uncured trophy, or any specified plant or part or derivative thereof [or scheduled specimen], in respect of which an offence against this Act appears to have been committed, in the possession of any person together with any trap, tool, vehicle, vessel or weapon used for committing any such offence and, unless he is satisfied that such person will appear and answer any charge which may be preferred against him, arrest him without warrant, and detain him:...</i> <i>(3) It shall be lawful for any of the officers referred to in sub-section (1) to stop and detain any person, whom he sees doing any act for which a licence or permit is required under the provisions of this Act, for the purposes of requiring such person to produce the licence or permit and if such person fails to produce the licence or permit, as the case may be, he may be arrested without warrant, unless he furnishes his name and address, and otherwise satisfies the officer arresting him that he will duly answer any summons or other proceedings which may be taken against him.</i> <i>[(3A) Any officer of a rank not inferior to that of an Assistant Director of Wild Life Preservation or 5 [an Assistant Conservator of Forests] who, or whose subordinate, has seized any captive animal or wild animal under clause (c) of sub-section (1) may give the same for custody on the execution by any person of a bond for the production of such animal if and when so required, before the Magistrate having jurisdiction to try the offence on account of which the seizure has been made.]...</i> <i>(5) Any person who, without reasonable cause, fails to produce anything, which he is required to produce under this section, shall be guilty of an offence against this Act...</i> <i>(7) Whenever any person is approached by any of the officers referred to in sub-section (1) for assistance in the prevention or detection of an offence against this Act, or in apprehending persons charged with the violation of this Act, or for seizure in accordance with clause (c) of sub-section (1), it shall be the duty of such person or persons to render such assistance...</i>
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Directory of Resources

1. Delhi Animal Welfare Board (DAWB)

Duties & Responsibilities of DAWB:

- As per Rule 3 (1) of *Prevention of Cruelty to Animals (Pet Shop) Rules, 2018* [Pet Shop Rules], no person is permitted to engage in sale or trade of pet animals without obtaining registration from DAWB.
- DAWB is empowered under Rule 10 (1) of Pet Shop Rules to cause inspection of pet shops upon receipt of complaints.
- As per Rule 3 (1) of *Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2017* [DBM Rules], no person shall engage in breeding dogs or own or house dogs for breeding and sale of dogs/puppies without obtaining registration from DAWB.
- DAWB is empowered under Rule 7 (1) of DBM Rules to cause inspection of establishment of a breeder upon receipt of complaints.

Designation	Address	Contact Number	Email ID
Member Secretary Delhi Animal Welfare Board [Director, Animal Husbandry Unit, Development Department, GNCTD]	Animal Husbandry Development Department, GNCT of Delhi Zorawar Singh Marg Near Pul Mithai, Tis Hazari, New Delhi - 110054	011-23890318, 011-23890174	directoahdelhigov@gmail.com

2. Society for the Prevention of Cruelty to Animals (SPCA)

Duties & Responsibilities of SPCAs in Delhi as per *Prevention of Cruelty to Animals (Establishment and Regulation of Societies for Prevention of Cruelty to Animals) Rules, 2001* [SPCA Rules, 2001]:

- Aid the government, the Animal Welfare Board of India, and local authorities in enforcing the provisions of the PCA, 1960 and make bylaws and guidelines, as it may deem necessary for efficient discharge of its duties.
- As per Rule 3 (4) of SPCA Rules, 2001, the SPCAs or any other person authorized by it in this behalf, can conduct searches, inquiries, and seize animals if there is reason to believe an offense is being committed under PCA, 1960.
- As per Rule 4 of SPCA Rules, 2001, the SPCAs are entrusted with the responsibility to supervise infirmaries and animal shelters under its control and jurisdiction, ensuring they are adequately staffed with a full-time veterinary doctor and other personnel for effective maintenance.

Address	Contact Number	Email ID
DSPCA Campus, Boulevard Road, (Opposite Tis Hazari Court), Delhi-110054	Office - +91 11 2396 5369 Hospital - +91 11 2397 2805	dspca09@yahoo.in

3. List of Government Veterinary Hospitals and District In-Charge/Jurisdictional Veterinary Officers [JVOs]

S.No.	Name of Institute and Address
SOUTH WEST DISTRICT District In-Charge at Veterinary Hospital Palam Contact Number: 011-25040042	
1.	<u>*Veterinary Hospital Palam -</u> Dabri - Palam Rd, Durgapuri & Dwarkapuri, Mahavir Enclave I, Vijay Enclave, Mahavir Enclave, New Delhi - 110045
2.	<u>Veterinary Hospital Chhawla -</u> Near Radhakrishnan Mandir, Village Chhawla, New Delhi - 110071
3.	<u>Veterinary Hospital Goyla Dairy -</u> Goyla Dairy, Qutub Vihar, Delhi, 110071

4.	<u>Veterinary Hospital Kakrola Dairy -</u> Kakrola Rd, near Dr. Sahib Singh Verma Stadium, Har Nagar, Sector 16, Kakrola, Delhi - 110078
5.	<u>Veterinary Hospital Nangli Dairy -</u> Najafgarh Main Road, Near Metro Pillar No. 48, Nangli Sakrawati, Nangli Dairy, New Delhi - 110043
6.	<u>Veterinary Hospital Daulatpur Village -</u> Village Daulatpur, New Delhi -110043
7.	<u>Veterinary Hospital Najafgarh -</u> Gaushala Road, Najafgarh, New Delhi - 110043
8.	<u>Veterinary Hospital Mitraon -</u> Panchayat Ghar, Main Road, Near Talab BSES Office, Village Mitraon, New Delhi - 110043
9.	<u>Veterinary Hospital Dhansa -</u> Near Allahabad Bank, Village Dhansa, New Delhi - 110043
10.	<u>Veterinary Hospital Kapashera -</u> Opposite Fun N Food, Village Kapashera, New Delhi - 110037
11.	<u>Veterinary Hospital Bijwasan -</u> Near Railway Station, Village Bijwasan, New Delhi-110061
12.	<u>Veterinary Hospital Dichaun -</u> Kalan Sainik Niketan, Village Dichaun Kalan, New Delhi - 110043
13.	<u>Veterinary Hospital Jharoda Kalan -</u> Near Baba Haridas Mandir, Village Jharoda Kalan, New Delhi-110072
NEW DELHI DISTRICT District In-Charge at Veterinary Hospital Masoodpur Contact Number: 011-26892731	
14.	<u>*Veterinary Hospital Masoodpur -</u> Near JIMS Institute, Main Road, Masoodpur, Masoodpur, New Delhi - 110070
15.	<u>Veterinary Hospital Rangpuri -</u> Near Purna Shiv Mandir, Rangpuri Village, New Delhi - 110037
SOUTH DISTRICT District In-Charge at Veterinary Hospital Satbari	
16.	<u>Veterinary Hospital Jonapur -</u> Village Jonapur, New Delhi - 110047

17.	<u>Veterinary Hospital Fatehpur Beri-</u> Fatehpur Beri Village, New Delhi - 110074
18.	<u>Veterinary Hospital Bhati Mines-</u> Village Bhati Mines, New Delhi - 110074
19.	<u>*Veterinary Hospital Satbari -</u> Gaushala Road, New Delhi - 110074
CENTRAL DISTRICT District In-Charge at Veterinary Hospital Tiz Hazari Contact Number: 011-23967555	
20.	<u>*Veterinary Hospital Tiz Hazari -</u> B-28/1, Gokhale Market, Tis Hazari, Opp. - Tis Hazari Court Gate No. 5, New Delhi, Delhi 110054
21.	<u>Veterinary Hospital Bhamashah -</u> Bhamashah Road, Near Model Town, New Delhi - 110009
NORTH EAST DISTRICT District In-Charge at Veterinary Hospital Karawal Nagar Contact Number: 011-22931725	
22.	<u>*Veterinary Hospital Karawal Nagar-</u> Karawal Nagar Main Chowk, Karawal Nagar, Delhi - 110094
23.	<u>Veterinary Hospital Jharoda Dairy -</u> Jharoda Kalan, Delhi-110084
24.	<u>Veterinary Hospital Burari -</u> Burari Village & P.O. Burari 110084
SHAHDARA DISTRICT District In-Charge at Veterinary Hospital Shahdara Contact Number: 011-22306808	
25.	<u>*Veterinary Hospital Shahdara -</u> Near Shahdra Metro- Station, Block- C, Shahdara, Delhi - 110032
26.	<u>Veterinary Hospital Seelampur -</u> Near Welcome Metro Station, G.T. Road, Seelampur, Delhi 110053
EAST DISTRICT District In-Charge at Veterinary Hospital Gazipur Contact Number: 011-22772703	
27.	<u>*Veterinary Hospital Gazipur -</u> C-34, Gazipur Dairy Farm, Gazipur, New Delhi - 110096

28.	<u>Veterinary Hospital Patparganj -</u> Near Bapu Nature Hospital, Patparganj, New Delhi- 110096
29.	<u>Veterinary Hospital Shakarpur -</u> Near Lakshmi Nagar Metro Station, Block-U, Shakarpur, New Delhi-110092
30.	<u>Veterinary Hospital Gharoli Dairy Farm -</u> Gharoli Dairy Farm, New Delhi -110096
NORTH DISTRICT District In-Charge at Veterinary Hospital Alipur Contact Number: 011-27202064	
31.	<u>Veterinary Hospital Bhalswa Dairy -</u> Near Durga Chowk Bhalswa Dairy, Delhi- 110042
32.	<u>Veterinary Hospital Badli -</u> Near Shiv Mandir, Village Badli, Delhi - 110042
33.	<u>Veterinary Hospital Narela -</u> Bawana Road Narela Anaj Mandi, Narela, Delhi - 110040
34.	<u>Veterinary Hospital Singhu Border -</u> GT Karnal Road Singhu Border Village, Delhi - 110040
35.	<u>*Veterinary Hospital Alipur -</u> GT Karnal Road Alipur, Delhi -110036
36.	<u>Veterinary Hospital Ghogha Dairy -</u> Bawana Main Road, Ghongha Dairy, Delhi - 110039
SOUTH EAST DISTRICT District In-Charge at Veterinary Hospital Tughlakabad Contact Number: 011-23890318	
37.	<u>*Veterinary Hospital Tughlakabad-</u> Ganga Baks Marg Tughlakabad, New Delhi -110044
38.	<u>Veterinary Hospital Madanpur Khadar -</u> Village Madanpur Khadar, New Delhi - 110076
39.	<u>Veterinary Hospital Madanpur Khadar Dairy -</u> Opp. MCD Dispensary Madanpur Khadar Dairy, Sarita Vihar, New Delhi - 110076
40.	<u>Veterinary Hospital Bhogal -</u> Village Bhogal, PO Jangpura, Bhogal, New Delhi -110014
NORTH WEST DISTRICT District In-Charge at Veterinary Hospital Bawana Contact Number: 011-27752913	

41.	<u>Veterinary Hospital Kanjhawala -</u> Village Kanjhawala, Delhi - 110081
42.	<u>Veterinary Hospital Dariyapur -</u> VPO Bazipur, Village Dariyapur, Delhi - 110039
43.	<u>Veterinary Hospital Prahladpur -</u> Opposite NDPL Office, Deep Vihar Road, Prahladpur, Delhi - 110042
44.	<u>*Veterinary Hospital Bawana –</u> MDR 138, Asthal Colony, Bawana, Delhi, 110039
WEST DISTRICT District In-Charge at Veterinary Hospital Nangloi Contact Number: 011-25944361	
45.	<u>*Veterinary Hospital Nangloi -</u> Block- 4 ABC Nangloi Extn., Nangloi, Delhi- 110041
46.	<u>Veterinary Hospital Zakhira -</u> Near Chara Mandi Zakhira, Delhi - 110015
47.	<u>Veterinary Hospital Tikri Kalan -</u> Netaji Subhash Vihar, Tikri Kalan, New Delhi-110041
48.	<u>Veterinary Hospital Hastal -</u> Krishna Colony, Hastal Village, Uttam Nagar, Delhi -110059

4. Authorized Premises for Care and Maintenance of Case Property Animals

Pending production before the Jurisdictional Magistrate, case property animals shall be housed at the authorized addresses provided below. Thereafter, the Magistrate may grant custody in accordance with Rule 3(b) of *the Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017*.

S.No.	Name of the Society	Address
1.	Society for Prevention of Cruelty to Animals, Shahdara District	Govt. of Fish Seed Farm, near welcome Metro, GT Road, Seelampur, Delhi-110053
2.	Society for Prevention of Cruelty to Animals, North East District	Govt. Veterinary Hospital, Karwal Nagar, Delhi-110094
3.	Society for Prevention of Cruelty to Animals, Central District	DSPCA campus, Boulevard Road, Tis Hazari, Delhi-110054
4.	Society for Prevention of Cruelty to Animals, North West District	Veterinary Hospital Complex, Kanjhawala, Delhi-110081

5.	Society for Prevention of Cruelty to Animals, New Delhi District	Veterinary Hospital Complex, Masoodpur, Vasant Kunj, Delhi Delhi-110070
6.	Society for Prevention of Cruelty to Animals, West District	Government Veterinary Hospital, Tikri Kalan, Bahadurgarh Road, Near Tikri Kalak, Metro Station, Delhi-110041
7.	Society for Prevention of Cruelty to Animals, North District	Veterinary Hospital, Alipur, Delhi-110036
8.	Society for Prevention of Cruelty to Animals, South District	Veterinary Hospital Complex, Satbari, New Delhi-110074
9.	Society for Prevention of Cruelty to Animals, East District	C-34, Veterinary Hospital Complex, Ghazipur Dairy Farm, Ghazipur, Delhi-110096
10.	Society for Prevention of Cruelty to Animals, South East District	Govt. Veterinary Hospital, Madanpur Khadar, New Delhi-110076
11.	Society for Prevention of Cruelty to Animals, South West District	Veterinary Hospital Campus, Najafgarh, New Delhi-110043

Helpline Number for Clarity on Procedures and Provisions for Delhi Police, Pertaining to Crimes Against Animals

Helpline Number: 92895 07644

